



Frequently Asked Questions

Who can apply for compensation?

Victims of crime, certain relatives, dependents, legal guardians, and eligible Good Samaritans can apply to the Office of Victim Services (OVS) for compensation of out-of-pocket expenses not covered by insurance or other resources.

What kind of expenses can I get compensated for?

OVS offers compensation related to personal injury, death, and loss of essential personal property.

The specific expenses OVS may cover include medical and counseling expenses, loss of essential personal property, crime scene clean-up, and other losses that are the direct result of the crime.

How do I ask for compensation?

Send us your completed OVS application along with copies of documentation that OVS may request to determine your eligibility for compensation.

What if I don't have some of the papers OVS needs?

Send your application in right away. You can send the other documents later.

What if my property was lost, damaged, or destroyed because of the crime?

If you are under 18, 60 years or older, disabled, or were injured, you may apply for benefits to replace your essential personal property or cash that was not covered by any other resource.

What if I move?

Mail or email OVS a signed letter right away. Tell us your new address and phone number. Also let us know if your email address changes.

Where do I find more information about the Crime Verification Form?

To find more information about the Crime Verification Form you can visit [General forms and publications](#).

Who can sign the claim?

Generally, the victim must sign the claim. However, if the victim is under 18, or is an adult under the care of a legal guardian, then the legal guardian (the person receiving the benefits) must fill out section 2 of the claim and sign the

authorization statement at the end of this claim form.

If the victim died, the person asking for benefits must fill out section 2 of this claim form and sign the claim.

Is there another way to apply?

Yes, you can visit <https://ovs.ny.gov/> to access the secure OVS Compass Applicant Portal, or Victim Advocate Portal, and file an application online. You can fill out a claim as a Guest or access the portal using your NY.gov account. For help submitting a claim online, please contact OVS at 800-247-8035 or email OVInfo@ovs.ny.gov.

Do I have to fill out a HIPAA form?

Maybe. This form helps protect your private health information. If you are claiming medical or counseling expenses, you should fill out one HIPAA form for each service provider. You can photocopy a blank form to make extra copies.

What is restitution?

Restitution is money paid to a victim by the perpetrator of a crime for the losses or injuries incurred because of the crime. It must be ordered by the Court at the time of sentencing, and it is considered part of the sentence. Restitution is not for payment of damages for future losses, mental anguish, or "pain and suffering". For more information, please contact OVS at 800-247-8035 or visit the OVS website at <https://ovs.ny.gov/legal-information>.

Who can get restitution?

Anyone who has been the victim of a crime and suffered injuries, financial losses, or damages can seek restitution.

How do I ask for restitution?

You should contact the District Attorney's office and advise them of how severe your injuries are, your out-of-pocket losses, and the amount of damages you are requesting.



OVS Contact Information

Mailing Address:

NYS Office of Victim Services
AE Smith Building
80 S. Swan Street
Albany, NY 12210-8002

Main Phone Number:

1-800-247-8035

Website:

<https://ovs.ny.gov>

Email applications and documents to:

OVStake@ovs.ny.gov

Processing Your Claim

Please send OVS the following documents and keep a copy of each document you send OVS for your records.

(All documents can be emailed to OVStake@ovs.ny.gov or mailed to the address listed in the OVS Contact Information section above.)

- Your completed and signed claim form. If it is safe for you, OVS encourages you to take a picture, make a copy, or scan and save a copy of the paper application as a reference before mailing it to OVS.
- All bills and receipts for expenses related to goods and services you described in this application.
- One completed HIPAA form for each medical and mental health provider you saw for services related to this crime.
- Letters from any insurance or government agencies denying or authorizing payments related to goods and services you described in this application.

Reminder

OVS is the payer of last resort and can only consider your out-of-pocket loss. OVS can only process payments for crime-related expenses. You must bill your insurance company or benefits plan **before** OVS can pay.

OVS Resource's Connect

You can also get help filing this claim from a Victim Assistance Program (VAP). VAPs have victim advocates and other trained individuals who can help you. Help from VAPs is free and confidential.

To find a VAP near you visit <https://ovs.ny.concerncenter.com/>.



Application for Compensation

Victim Demographics			
Last Name:	First Name:	MI:	Date of Birth:
Preferred Last Name:		Preferred First Name:	
Pronouns: ☐ He/Him ☐ She/Her ☐ They/Them ☐ Other: ☐ Prefer not to answer			
Legal Address			
Street:		Apt. Number:	
City:	State:	ZIP:	County:
Country:			
Current Mailing Address (If different from the legal address)			
Street:		Apt. Number:	
City:	State:	ZIP:	County:
Country:			
Would you like OVS to send you mail related to the claim? ☐ Yes ☐ No			
Phone Number: ☐ Cell: ☐ Home: ☐ Other:			
Email:		Preferred Method of Contact: ☐ Phone ☐ Email	
Victim Race/Ethnicity: (Select all that apply) ☐ Hispanic or Latino ☐ Black or African American ☐ White or European American ☐ North African ☐ American Indian or Alaskan Native ☐ Asian ☐ Pacific Islander ☐ Middle Eastern ☐ Other: ☐ Prefer not to answer			
Preferred Language: ☐ Arabic ☐ Bengali ☐ English ☐ French ☐ Haitian Creole ☐ Italian ☐ Korean ☐ Polish ☐ Russian ☐ Chinese ☐ Spanish ☐ Urdu ☐ Yiddish ☐ Other:			
Interpreter Needed: ☐ Yes ☐ No			
Victim Marital Status: ☐ Single ☐ Married ☐ Divorced ☐ Separated ☐ Widowed			
Was the victim disabled at the time of the crime? ☐ Yes ☐ No ☐ Unknown		Sex Assigned at Birth: ☐ Male ☐ Female ☐ X ☐ Prefer not to answer	



Application for Compensation

Does the victim consider themselves to be transgender?

☐ Yes ☐ No ☐ I do not know ☐ Prefer not to answer

Victim Gender Identity:

☐ Male ☐ Female ☐ Non-binary ☐ Two Spirit (American Indian/Alaskan Native) ☐ I do not know
☐ Other: ☐ Prefer not to answer

Victim Sexual Orientation:

☐ Gay or lesbian ☐ Straight, not gay or lesbian ☐ Bisexual ☐ Other:
☐ Prefer not to answer

How did you hear about OVS?

☐ District Attorney ☐ Hospital ☐ Internet ☐ Police ☐ Radio/TV ☐ Victim Assistance Program
☐ Other:

Claimant Demographics (If different from Victim)

Last Name:	First Name:	MI:	Date of Birth:
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Preferred Last Name:	Preferred First Name:
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Legal Address (If different from victim)

Street:	Apt. Number:
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City:	State:	ZIP:	County:
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Country:

Current Mailing Address (If different from the legal address and victim information)

Street:	Apt. Number:
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City:	State:	ZIP:	County:
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Would you like OVS to send you mail?

☐ Yes ☐ No

Phone Number:

☐ Cell: ☐ Home: ☐ Other:

Email Address:	Preferred Method of Contact: ☐ Phone ☐ Email
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What is the claimant's relationship with the victim?

☐ Child ☐ Domestic Partner ☐ Grandchild ☐ Grandparent ☐ Guardian ☐ Parent ☐ Sibling ☐ Spouse
☐ Stepchild ☐ Stepparent ☐ Stepsibling ☐ Other:

Preferred Language:

☐ Arabic ☐ Bengali ☐ English ☐ French ☐ Haitian Creole ☐ Italian ☐ Korean ☐ Polish ☐ Russian ☐ Chinese
☐ Spanish ☐ Urdu ☐ Yiddish ☐ Other:



Application for Compensation

Interpreter Needed:

☐ Yes ☐ No

Secondary Victim Demographics

OVS refers to the victim's additional surviving family members as secondary victims who might be eligible for reimbursing counseling expenses.

Several kinds of family members may be eligible, but one example of a secondary victim is a child under the age of 18 whose parent died as a result of a crime and needs counseling because of what happened.

If you would like to request counseling compensation for a secondary victim, please provide the following information:

(You will be asked to provide the name of the secondary victim's mental health care provider, and their insurance carrier name later in the application.)

Last Name:	First Name:	MI:	Date of Birth:
Preferred Last Name:		Preferred First Name:	

What is the secondary victim's relationship to the victim?

☐ Child ☐ Domestic Partner ☐ Grandchild ☐ Grandparent ☐ Guardian ☐ Parent ☐ Sibling ☐ Spouse
☐ Stepchild ☐ Stepparent ☐ Stepsibling ☐ Other:

Authorized Representative (Other than Attorney)

Last Name:		First Name:		MI:
Address				
Street:			Floor/Suite	
City:	State:	ZIP:	County:	
Country:				
Phone Number:				
☐ Cell:		☐ Home:		☐ Other:
Email Address:			Preferred Method of Contact:	
			☐ Phone ☐ Email	

What is the authorized representative's relationship with the victim?

☐ Child ☐ Domestic Partner ☐ Grandchild ☐ Grandparent ☐ Guardian ☐ Parent ☐ Sibling ☐ Spouse
☐ Stepchild ☐ Stepparent ☐ Stepsibling ☐ Other:



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Authorized Representative's Preferred Language:

☐ Arabic ☐ Bengali ☐ English ☐ French ☐ Haitian Creole ☐ Italian ☐ Korean ☐ Polish ☐ Russian ☐ Chinese
☐ Spanish ☐ Urdu ☐ Yiddish ☐ Other:

Interpreter Needed:

☐ Yes ☐ No

Legal Representation

Last Name:

First Name:

Firm Name:

Address

Street:

Floor/Suite:

City:

State:

ZIP:

County:

Country:

Phone Number:

Email Address:

Victim Assistance Program Representation

Advocate's Last Name:

Advocate's First Name:

Victim Assistance Program:

Phone Number:

Email Address:

Crime Information

Did the crime occur in New York State?

☐ Yes ☐ No

Date of the crime (MM/DD/YYYY):

(Date can be approximate)

If the crime was reported more than 3 years after the date the crime occurred, please select one of the following:

☐ I did not know I could get victim compensation related to this crime.

☐ Other reason:

Location

Street:

Apt. Number



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City:	State:	ZIP:	County:
Country:			
Where did the crime happen? ☐ Work ☐ Owned Residence ☐ Apartment Building ☐ Public Street ☐ Subway/Bus ☐ Parking Lot ☐ Restaurant/Bar ☐ School/School Grounds ☐ Shopping Mall/Store ☐ Other (<i>Explain</i>):			
Did the victim sustain any physical injuries? ☐ Yes ☐ No			
Please describe what happened to the victim.			
Select the type of crime that occurred: (Please only choose the crimes that are supported by the facts of the claim.)			
☐ Harassment 2 nd or 1 st degree (PL 240.26 or 240.25) ☐ Aggravated Harassment 2 nd or 1 st degree (PL 240.30 (3) or (5), or PL 240.31 (2)) ☐ Criminal Obstruction of Breathing or Blood Circulation (PL 121.11) ☐ Menacing 3 rd , 2 nd , or 1 st degree (P 120.15, 12.14, (2) or (3), or 120.13) ☐ Reckless Endangerment 2 nd or 1 st degree (PL 120.20 or 120.25) ☐ Kidnapping 2 nd or 1 st degree (PL 130.20 or 135.25) ☐ Unlawful Imprisonment 1 st degree (PL 135.10) ☐ Human Trafficking	☐ Assault ☐ Arson ☐ Murder ☐ Stalking 4 th , 3 rd , 2 nd , or 1 st degree (PL 120.45, 120.50, 120.55, or 120.60) ☐ Unlawful Surveillance 2 nd or 1 st degree (PL 250.45 or 250.50) ☐ Dissemination of an Unlawful Surveillance 2 nd or 1 st degree (PL 250.55 or 250.60) ☐ Unlawful Dissemination or Publication of an Intimate Image (PL 245.15) ☐ Child Physical Abuse/Neglect ☐ Child Sex Abuse	☐ Child Sex Abuse Material ☐ Sex Offense ☐ Criminal Contempt 1 st degree (PL 215.51 (b) or (c)) ☐ Criminal Mischief 4 th degree (PL 145.00 (4)) ☐ Motor Vehicle (DUI/DWI) ☐ Motor Vehicle Crime (Not DUI/DWI) ☐ Robbery 3 rd , 2 nd , or 1 st degree (PL 160.05; 160.10(1), (2)(b), or (3); 160.15 (2), (3), or (4)) ☐ Terrorism ☐ Hate Crime (PL 485.05) ☐ None of the above crimes apply.	



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If none of the crimes listed apply, please tell us the crime that best describes what the victim/survivor experienced:

Was the crime related to any of these situations?

(This information is used to understand the crime better. The answers do not impact any decision about the claim.)

1. Was the crime related to domestic violence?

☐ Yes ☐ No ☐ I do not know ☐ Prefer not to answer

2. Was the crime related to alcohol consumption?

☐ Yes ☐ No ☐ I do not know ☐ Prefer not to answer

3. Did the crime involve illegal drug use?

☐ Yes ☐ No ☐ I do not know ☐ Prefer not to answer

4. Did the crime involve bullying?

☐ Yes ☐ No ☐ I do not know ☐ Prefer not to answer

5. Did the crime involve elder abuse?

☐ Yes ☐ No ☐ I do not know ☐ Prefer not to answer

6. Did the crime involve gun violence?

☐ Yes ☐ No ☐ I do not know ☐ Prefer not to answer

7. Was the victim driving a livery cab?

☐ Yes ☐ No ☐ I do not know ☐ Prefer not to answer

8. Was this a hate crime?

☐ Yes ☐ No ☐ I do not know ☐ Prefer not to answer

9. Was this considered a federal crime?

☐ Yes ☐ No ☐ I do not know ☐ Prefer not to answer

10. Was this a mass violence incident?

☐ Yes ☐ No ☐ I do not know ☐ Prefer not to answer

11. Was the victim helping someone who was experiencing a crime (also known as acting as a Good Samaritan)?

☐ Yes ☐ No ☐ I do not know ☐ Prefer not to answer



Application for Compensation

Supporting Documentation for Crime Verification

You only need to submit one document showing OVS that a third-party has confirmed that you or the victim/survivor experienced a crime. You can speak to a victim service provider or medical or mental health professional, and they can fill out a Crime Verification Form. A Crime Verification Form documents information about someone's injuries and experiences related to a crime. It helps to support the application for victim compensation benefits from OVS. You can download a blank copy of the form at <https://ovs.ny.gov>.

You may also choose to report the crime to law enforcement and submit a criminal justice agency report, like a police report, as part of this application. Please visit <https://ovs.ny.gov/victim-compensation> for more information.

Police/Criminal Justice Agency

Was this crime reported to police or another criminal justice agency?

☐ Yes ☐ No

If yes, do you want to use the report as part of your application?

☐ Yes ☐ No

If yes, please provide the following information to the best of your abilities:

Select the police or criminal justice agency the crime was reported to:

- ☐ Police
☐ Court
☐ Correctional Facility
☐ Probation Department
☐ Other:

Report ID Number:
(Optional)

Date the crime was reported (MM/DD/YYYY):
(Date can be approximate)

Name of the criminal justice agency:
(e.g. local police department or precinct)

Address of Law Enforcement Agency Reported To (Optional)

Street:

Floor/Suite

City:

State:

ZIP:

County:

Country:

Medical Care

Did the victim seek medical care after the crime happened?

☐ Yes ☐ No

If yes, did the medical professional complete a Crime Verification Form?

☐ Yes ☐ No ☐ I do not know



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If yes, do you want to use the Crime Verification Form as part of your application? You can submit a completed form as part of this application or send it to OVStake@ovs.ny.gov.

☐ Yes ☐ No

If yes, please provide the following information:

Medical Professional's Last Name:	Medical Professional's First Name:
Date of the exam (MM/DD/YYYY): (Date can be approximate)	Did this crime involve sexual assault? (Sexual assault is any type of sexual activity or contact that occurs without consent.) ☐ Yes ☐ No
If the crime involved sexual assault, was a Forensic Rape Exam (FRE) performed? ☐ Yes ☐ No	If an FRE was performed, do you want to use the report as part of your application? ☐ Yes ☐ No

Victim Assistance Program

Was the crime reported to a Victim Assistance Program (VAP)?

☐ Yes ☐ No

If yes, did the VAP complete a Crime Verification Form?

☐ Yes ☐ No ☐ I do not know

If yes, do you want to use the Crime Verification Form as part of your application? You can submit a completed form as part of this application or send it to OVStake@ovs.ny.gov.

☐ Yes ☐ No

If yes, please provide the following information:

Advocate's Last Name:	Advocate's First Name:
Victim Assistance Program Name:	Date the crime was reported to the Victim Advocate (MM/DD/YYYY): (Date can be approximate)

Mental Health Professional

Did you tell a mental health professional about this crime?

(For example, a therapist, a psychologist, etc....)

☐ Yes ☐ No

If yes, did the mental health professional complete a Crime Verification Form?

☐ Yes ☐ No ☐ I do not know

If yes, do you want to use the Crime Verification Form as part of your application? You can submit a completed form as part of this application or send it to OVStake@ovs.ny.gov.

☐ Yes ☐ No

If yes, please provide the following information:

Mental Health Professional's First Name:	Mental Health Professional's Last Name:
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Date of the mental health consult
(MM/DD/YYYY):
(Date can be approximate)

Compensation Request

After the claim is submitted additional documentation will be requested for the selected compensation requests.

Medical/Mental Health Expenses

(Select all that apply)

- ☐ Medical
- ☐ Ambulance
- ☐ Counseling
- ☐ Transportation to Medical Appointments (*related to this crime*)
- ☐ Physical Rehabilitation
- ☐ Vocational Rehabilitation
- ☐ Home Care
- ☐ Home Modifications
- ☐ Vehicle Modifications
- ☐ Other:

Non-Medical Expenses

(Select all that apply)

- ☐ Essential Personal Property
- ☐ Relocation
- ☐ Home Security Devices and Installation
- ☐ Financial Counseling
- ☐ Restoring Property or Spaces where Crime Occurred
- ☐ Transportation to Court Appearances (*related to this crime*)
- ☐ Domestic Violence Shelter
- ☐ Funeral/Burial
- ☐ Loss of Support
- ☐ Lost Wages
- ☐ Other:

Essential Personal Property

Essential personal property are items that may be considered required for the victim's everyday life. These items include eyeglasses, clothing, bedding, important documents, etc.

To request reimbursement, they must have been damaged or destroyed as a result of the crime.

Please remember that not all items may be eligible for compensation. An OVS investigator will review your claim and determine which item(s) are eligible.

Did the victim lose any essential personal property?

☐ Yes ☐ No

If yes, list each item that was lost or damaged and how much the item cost.

(Do not enter lost cash here.)

Lost or Damaged Item	Cost of Item



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Lost Money *(Please be aware that OVS has limits on what we can reimburse for these losses.)*

Did the victim lose any cash or have money taken from a credit card, gift card, or benefit card as a result of this crime?
☐ Yes ☐ No

If yes, was this loss the result of a scam or fraud?
☐ Yes ☐ No

What was stolen?
(Select all that apply and enter the amount lost/stolen)

☐ Cash:
☐ Credit Card:
☐ Gift Card:
☐ Benefit Card (SNAP, EBT):
☐ Other:

Lost Wages

Sometimes, a person who experienced a crime loses wages as a result of what happened. This can mean missing a shift of work. It can also mean that they were injured and out of work for an extended period of time or no longer able to work.

Did the victim lose wages as a result of this crime?
☐ Yes ☐ No

If yes, please provide employer information:
(OVS will need to contact your employer for information about lost wages you lost because of this crime.)

Is the victim self-employed?
☐ Yes ☐ No

If no, please provide the following information:

Name of the business the victim works for:

Contact Name:		Contact's Job Title:	
Contact's Email Address:		Contact's Phone Number:	

Employer's Address

Street:			Floor/Suite
City:	State:	ZIP:	County:
Country:			



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Financial Situation

Determining financial needs is part of determining eligibility and the total amount of compensation that may be awarded. We need to ask a few more questions about the victim's financial situation so that we can make that determination. If you are filing on behalf of a minor or filing a death claim, then we will need the claimant's financial situation.

How many dependents does the victim/claimant have?

(Dependents are people who rely on you for income (such as children or a spouse.))

What is the victim's/claimant's total annual income from all sources?

(If unsure the total annual income can be an estimate.)

How much money does the victim/claimant currently have in savings, stock, and bonds?

(If you have none of these, please enter \$0.)

Does the victim/claimant own property? If so, how much is the total property worth?

(Property includes house, apartment/condo/co-op, second homes, commercial buildings, etc. If you have none of these, please enter \$0.)

Does the victim/claimant have a mortgage on any property they own? If so, what is the total amount the victim pays per month?

(If you do not have a mortgage, please enter \$0.)

Does the victim/claimant pay rent on any property? If so, how much is the total rent for all properties per month?

(If you do not rent, please enter \$0.)

Does the victim/claimant have any loans? If so, what is the total amount owed on all loans as of the date of this application?

(This includes loans you may have been a co-signer or guarantor for. If you do not have any loans, please enter \$0.)

Suspect/Perpetrator Information

If more than one person committed this crime, please attach additional pieces of paper to this application.

Do you know the name of the person who committed this crime?

☐ Yes ☐ No

If yes, please provide the person's information below.

Suspect/Perpetrator



Application for Compensation

Last Name:	First Name:
Has the suspect/perpetrator been arrested for this crime? ☐ Yes ☐ No ☐ I do not know	
Has the suspect/perpetrator been prosecuted for this crime? ☐ Yes ☐ No ☐ I do not know	
Did the suspect/perpetrator live in the same house as the victim? ☐ Yes ☐ No ☐ I do not know	
Is the suspect/perpetrator a family member of the victim? ☐ Yes ☐ No ☐ I do not know	
Has the court issued an order of protection in this case against the suspect/perpetrator? (An order of protection is a legal document issued by a court to protect people. It can also be called a protective order or protection order.) ☐ Yes ☐ No ☐ Not yet ☐ I do not know	
Restitution	
Has the District Attorney (DA) asked the court for restitution from the suspect(s)/perpetrator(s)? ☐ Yes ☐ No ☐ Not yet ☐ I do not know	
If yes, did the court order the suspect(s)/perpetrator(s) to pay restitution? ☐ Yes ☐ No ☐ Not yet	
If yes, how much money did the court order to be paid to the victim by the person(s) who committed the crime? Amount: ☐ I do not know	

Insurance		
OVS is the payer of last resort. This means that expenses should first go through insurance before coming to OVS for compensation. OVS will check claims against insurance information before making a decision about whether or not we can reimburse an expense requested.		
Please fill in the information below for each insurance carrier related to requested reimbursement.		
Select your insurance carrier	Enter Insurance Carrier	Enter Insurance ID
☐ Auto Insurance		
☐ Burial Insurance		
☐ Homeowner's Insurance/Renters Insurance		
☐ Property Insurance		
☐ Medical/Vision/Dental Insurance		



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Select the type of Medical Insurance: ☐ Private insurance ☐ Medicaid Insurance ☐ Medicare Insurance ☐ Other: What does this insurance plan cover? ☐ Medical ☐ Vision ☐ Dental		
☐ Health Insurance for counseling for yourself. Select the type of Health Insurance: ☐ Private insurance ☐ Medicaid Insurance ☐ Medicare Insurance		
☐ Health Insurance for counseling for a secondary victim/survivor. (If they are not covered leave unchecked)		
☐ Life Insurance		
☐ Other:		
☐ I do not have insurance		

Benefits

Some expenses that result from a crime may be reimbursed by state and federal benefits plans.

Because OVS is a payer of last resort (meaning a funding source that may be used only after all other public and private funding sources have been used), we need to understand any benefits the victim receives.

Select all Benefits that Apply:

☐ Social Security Disability Insurance (SSDI)

(Victims may receive SSDI if injuries sustained from the crime result in long-term or permanent disability that prevents them from working.)

☐ Veteran's Benefits

(Veteran specific support for survivors or trauma and violence.)

☐ Worker's Compensation (WC)

(Victim may receive WC if the crime occurred at work.)

☐ Other:

☐ None



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Workers Compensation/Disability

If the victim has coverage through either Worker's Compensation or a Disability Insurance provider, OVS will need the decision letter from either Worker's Compensation or the Disability Insurance provider to help determine eligibility for compensation.

Victim/Claimant Authorization

This form gives OVS permission to contact the service providers, lawyers, law enforcement, and insurance companies that are involved in this claim.

By signing this form, you give permission for OVS to contact any providers (medical, insurance, or other products and services) involved in this claim.

I ACKNOWLEDGE that accepting an award from the Office of Victim Services (OVS) creates a lien in favor of the State of New York on any recovery relating to the crime upon which this claim is based, including any judgment, settlement, or payments from an order of restitution. I authorize any funeral director, attorney, employer, police or other public authority, insurance company, or any person who provided services in the matter described above, or having knowledge of the same, to furnish to OVS or its representatives the following information:

Workers' Compensation records, information relating to the crime, or any injuries or death suffered as a result of the crime, and information relating to this claim. If an award is made, I authorize OVS to make payments directly to the provider of services. I also authorize OVS to share my information and records compiled for this claim with the local Victim Assistance Program (VAP) listed on this application or any local government entity established in New York State to assist crime victims in order for the VAP or local government entity to assist OVS in processing my claim, making its determination, and coordinating services.

If I have listed a private lawyer on this application, I also authorize OVS to share my information and records compiled for this claim with the lawyer to act as my representative. I understand a separate Notice of Appearance from my lawyer will be needed in addition to this authorization. If a family member, friend, or other person is listed on this application, I authorize OVS to share my information and records compiled for this claim with that person so they can assist me with this claim.

I understand that OVS may be served with a judicial subpoena for records related to my claim; OVS may be required by law to comply with such order but redact (delete) any personally identifiable information. I certify the information given on this application and any documentation provided in support of this application is true and complete.

I understand that knowingly making a false statement on this application, or submitting any documentation provided in support of this application that is false, may be punishable as a criminal offense. I acknowledge that completing this application does not guarantee an award.



Application for Compensation

By submitting this application, I acknowledge that typing my name in this box is the legal equivalent to my written signature, and I am affirming the truth of the information contained therein to the best of my knowledge.

Victim/Claimant Signature:

Date:



AUTHORIZATION FOR RELEASE OF HEALTH INFORMATION PURSUANT TO HIPAA

[This form has been approved by the New York State Department of Health]

Patient Name	Date of Birth	Social Security Number XXX-XX-
Patient Address		

I, or my authorized representative, request that health information regarding my care and treatment be released as set forth on this form:
In accordance with New York State Law and the Privacy Rule of the Health Insurance Portability and Accountability Act of 1996 (HIPAA),
I understand that:

1. This authorization may include disclosure of information relating to **ALCOHOL and DRUG ABUSE, MENTAL HEALTH TREATMENT**, except psychotherapy notes, and **CONFIDENTIAL HIV* RELATED INFORMATION** only if I place my initials on the appropriate line in Item 9(a). In the event the health information described below includes any of these types of information, and I initial the line on the box in Item 9(a), I specifically authorize release of such information to the person(s) indicated in Item 8
2. If I am authorizing the release of HIV-related, alcohol or drug treatment, or mental health treatment information, the recipient is prohibited from redisclosing such information without my authorization unless permitted to do so under federal or state law. I understand that I have the right to request a list of people who may receive or use my HIV-related information without authorization. If I experience discrimination because of the release or disclosure of HIV-related information, I may contact the New York State Division of Human Rights at (212) 480-2493 or the New York City Commission of Human Rights at (212) 306-7450. These agencies are responsible for protecting my rights.
3. I have the right to revoke this authorization at any time by writing to the health care provider listed below. I understand that I may revoke this authorization except to the extent that action has already been taken based on this authorization.
4. I understand that signing this authorization is voluntary. My treatment, payment, enrollment in a health plan, or eligibility for benefits will not be conditioned upon my authorization of this disclosure.
5. Information disclosed under this authorization might be redisclosed by the recipient (except as noted above in Item 2), and this redisclosure may no longer be protected by federal or state law.

THIS AUTHORIZATION DOES NOT AUTHORIZE YOU TO DISCUSS MY HEALTH INFORMATION OR MEDICAL CARE WITH ANYONE OTHER THAN THE ATTORNEY OR GOVERNMENTAL AGENCY SPECIFIED IN ITEM 9(b).

7. Name and address of health provider or entity to release this information:	
8. Name and address of person(s) or category of person to whom this information will be sent: NYS OFFICE OF VICTIM SERVICES – AE SMITH BLDG., 80 S. SWAN ST., ALBANY, NY 12210-8002	
9(a). Specific information to be released: ☐ Medical Record from (insert date) _____ to (insert date) _____ ☐ Entire Medical Record, including patient histories, office notes (except psychotherapy notes), test results, radiology studies, films, referrals, consults, billing records, insurance records, and records sent to you by other health care providers. ☐ Other: _____ Include: (<i>Indicate by Initialing</i>) Alcohol/Drug Treatment Mental Health Information HIV-Related Information	
Authorization to Discuss Health Information	
(b) ☐ By initialing here, _____ I authorize _____ Initials Name of individual health care provider to discuss my health information with my attorney, or a governmental agency, listed here: NEW YORK STATE OFFICE OF VICTIM SERVICES _____ (Attorney/Firm Name or Governmental Agency Name)	
10. Reason for release of information: <i>At request of the individual for purposes of establishing eligibility for New York State Office of Victim Services benefits.</i>	11. Date or event on which this authorization will expire: <i>This authorization will expire upon the termination of the individual's eligibility for Office of Victim Services benefits.</i>
12. If not the patient, name of person signing form:	13. Authority to sign on behalf of patient:

All items on this form have been completed and my questions about this form have been answered. In addition, I have been provided a copy of the form.

Date: _____

Signature of patient or representative authorized by law.

*** Human Immunodeficiency Virus that causes AIDS.** The New York State Public Health Law protects information which reasonably could identify someone as having HIV symptoms or infection and information regarding a person's contact.